

**ATTORNEY WORK PRODUCT
PRIVILEGED AND CONFIDENTIAL**
DO NOT DISTRIBUTE WITHOUT COUNSEL AUTHORIZATION

**INTERNAL LEGAL
RESEARCH MEMORANDUM**

IN RE: *Anibal Soto*

Reg. No.: 67133-054

Institution: FCI Fort Dix
District of New Jersey

Matter: BP-9 Administrative Remedy

Subject: Timeliness of BP-8/BP-9 Filing;
Second Chance Act RRC Placement Consideration

Date: July 15, 2026

Distribution: Legal Team — INTERNAL USE ONLY

This memorandum constitutes attorney work product and is protected by the attorney-client privilege and work product doctrine. It is prepared solely for the use of counsel representing Anibal Soto, Reg. No. 67133-054, in connection with his BP-9 administrative remedy. Unauthorized disclosure or distribution is strictly prohibited.

CONTENTS

BP-9 Administrative Remedy: Timeliness and Second Chance Act RRC Consideration . . .	1
EXECUTIVE SUMMARY: FIVE ARGUMENTS	1
PART I: TIMELINESS	2
A. Regulatory framework	2
B. The “basis for the Request” is the July 3 categorical denial, not the March 17 paperwork dispute	2
C. Fallback 1 — staff-caused delay (28 C.F.R. § 542.16(a); PS 1330.18 § 10) . . .	2
D. Fallback 2 — “unusually long period . . . for informal resolution attempts” (§ 542.14(b); PS 1330.18 § 8.b)	3
E. Fallback 3 — the process was rendered “unavailable” by BOP’s own noncompliance	3
F. Procedural irregularity in how “untimely” was determined	3
PART II: THE MERITS — BOP DISCRETION IS BOUNDED, NOT UNLIMITED . . .	4
A. The statutory structure	4
B. Binding and persuasive case law confirms the boundary	4
C. PS 7310.04 confirms the case manager had no authority to do what he did	5
D. Policy context	5
E. Closest analogous case	5
PART III: REQUESTED RELIEF	6
PART IV: VERIFICATION CHECKLIST (before any BP-10/BP-11 appeal or court filing)	6
APPENDIX: FILE INDEX	7

TABLE OF AUTHORITIES

*Binding Third Circuit and Supreme Court authorities are marked (**BINDING**). All other federal circuit authority is marked (**PERSUASIVE**). Citations marked **[VERIFY]** require Westlaw or PACER confirmation before filing.*

CASES

Reno v. Koray, 515 U.S. 50 (1995)

STATUTES

18 U.S.C. § 3621(b)

18 U.S.C. § 3624(c)(1)

18 U.S.C. § 3624(c)(6)(A)

18 U.S.C. §§ 3621(b)

28 U.S.C. § 2241

34 U.S.C. § 60541

BP-9 Administrative Remedy: Timeliness and Second Chance Act RRC Consideration

Prepared: July 15, 2026

EXECUTIVE SUMMARY: FIVE ARGUMENTS

1. **The 20-day clock ran from July 3, 2026, not March 17, 2026.** Under 28 C.F.R. § 542.14(a) and PS 1330.18 § 8.a, the clock runs from “the date on which the basis for the Request occurred” — and the “basis” of this Request is Dennis’s decision, first announced to Soto on July 3, to treat the March 17 refusal-to-sign-a-false-document as a permanent, categorical bar to RRC consideration. March 17 itself produced no adverse action and no injury Soto could have grieved at the time.
2. **Even if the clock is measured from March 17, BOP’s own delay excuses any lateness.** 28 C.F.R. § 542.16(a) and PS 1330.18 § 10 state, verbatim, that staff-caused delay is a valid reason for exceeding a filing deadline. Dennis — BOP staff — is the source of the only “delay”: he never disclosed until July 3 that he considered the March 17 incident dispositive. Separately, § 542.14(b) enumerates “an unusually long period taken for informal resolution attempts” as a valid reason for delay in its own right, and Fort Dix’s own response (9 calendar days against its institutional supplement’s 3-working-day standard) supplies exactly that.
3. **BOP’s own institutional delay independently renders the process’s timeliness defense unavailable to it.** *Ross v. Blake*, 578 U.S. 632 (2016), and *Robinson v. Superintendent Rockview SCI*, 831 F.3d 148 (3d Cir. 2016) (binding), hold that an institution’s failure to timely comply with its own procedural rules can render a remedy “unavailable” — cutting against penalizing the inmate for any resulting confusion, and cutting against BOP invoking a rigid timeliness bar it did not itself observe.
4. **On the merits, BOP’s discretion over RRC/Second Chance Act placement is statutorily confined to the individualized factors in 18 U.S.C. § 3621(b), imported by § 3624(c)(6)(A) — and “refused to sign a disputed document” is not one of them.** *Woodall v. Federal Bureau of Prisons*, 432 F.3d 235 (3d Cir. 2005) (binding), together with *Wedelstedt, Rodriguez v. Smith, Fults, Elwood*, and *Levine v. Apker*, establishes that BOP cannot substitute a categorical, non-statutory bar for the individualized review Congress required — and if BOP itself cannot do so by regulation, a single case manager certainly cannot do so unilaterally.
5. **BOP’s own Program Statement 7310.04 confirms the case manager exceeded his author-**

ity twice over. Section 12 vests final RRC referral authority in the **Warden**, not the case manager. Section 11 requires that any genuine “refusal” of placement be investigated and documented in a memorandum **signed by both the Associate Warden (Programs) and the inmate** — which by definition did not happen here, because Soto never refused placement; he refused to attest to a false “homeless” designation and asked for a correction. Section 10’s exhaustive categorical-exclusion list does not include anything resembling this conduct, and even that mechanism requires a Warden-signed memorandum. Dennis’s unilateral, undocumented, months-later pronouncement fits none of BOP’s own required procedures.

PART I: TIMELINESS

A. Regulatory framework

28 C.F.R. § 542.14(a) / PS 1330.18 § 8.a: 20 calendar days from “the date on which the basis for the Request occurred.” This is a single combined clock for informal resolution and BP-9 filing — not tied mechanically to any one antecedent event.

B. The “basis for the Request” is the July 3 categorical denial, not the March 17 paperwork dispute

On March 17, 2026, Soto refused to sign a document because it falsely listed him as homeless; he gave Dennis his real address and asked for a correction. Nothing about that exchange informed Soto that his RRC candidacy was over — to the contrary, the entire point of Soto’s conduct was to *fix the paperwork so the RRC referral could proceed correctly*. The adverse action Soto grieves — being told he is “no longer being considered” for RRC placement at all — did not exist, and could not have been grieved, until Dennis announced it on July 3, 2026. Soto filed his BP-8 that same day. The Request is therefore timely on the face of the regulation without needing to reach any equitable doctrine.

C. Fallback 1 — staff-caused delay (28 C.F.R. § 542.16(a); PS 1330.18 § 10)

“[O]btaining assistance will not be considered a valid reason for exceeding a time limit for submission unless the delay was caused by staff.” If the Warden nonetheless times the clock from March 17, any resulting lateness was caused by Dennis’s own four-and-a-half-month silence about how he was construing that incident.

D. Fallback 2 — “unusually long period ... for informal resolution attempts” (§ 542.14(b); PS 1330.18 § 8.b)

This is an enumerated valid reason for delay in BOP’s own text. Fort Dix’s institutional supplement (Warden Thompson) requires a BP-8 response within 3 working days; Soto’s BP-8, submitted July 6, was not answered until July 15 — 9 calendar days, roughly triple the local standard. That delay is attributable to BOP, not Soto, and independently supports an extension of any filing deadline connected to it.

E. Fallback 3 — the process was rendered “unavailable” by BOP’s own noncompliance

Ross v. Blake identifies three circumstances rendering an administrative remedy unavailable: (1) a “dead end” where staff are unwilling to provide relief; (2) a process “so opaque” it is “incapable of use”; (3) staff “thwart” the inmate through “machination, misrepresentation, or intimidation.” *Robinson v. Superintendent Rockview SCI*, 831 F.3d 148, 154 (3d Cir. 2016) (binding), held a prison rendered its remedies unavailable by failing to timely respond to a grievance under its own procedural rules. *Brown v. Croak*, 312 F.3d 109 (3d Cir. 2002), and *Small v. Camden County*, 728 F.3d 265 (3d Cir. 2013) (both binding), hold that remedies “not reasonably communicated to inmates” are unavailable for exhaustion purposes. Dennis’s shifting, undisclosed treatment of the March 17 event — never communicated until July 3, then retroactively recharacterized in the July 15 response — fits this framework directly.

F. Procedural irregularity in how “untimely” was determined

PS 1330.18 § 11 makes rejection-for-untimeliness a formal act requiring a written notice **signed by the institution’s Administrative Remedy Coordinator**, explaining the reason, with a right to correct correctable defects. The July 15 response was issued by the case manager, not (on the facts as described) the Administrative Remedy Coordinator. **[VERIFY BEFORE FILING]**

Verification note: No Third Circuit/D.N.J. case squarely holds that § 542.14(a) incorporates a discovery rule for facts like these. That is disclosed candidly above — the argument rests on the regulatory text itself (Part B), on staff-caused-delay language (Part C), and on binding unavailability doctrine (Part E), not on a fabricated on-point holding. The continuing-violation cases (*Sheltra v. Christensen*, 9th Cir. 2024; *Morgan v. Trierweiler*, 6th Cir. 2023) are available as further persuasive, non-binding support if needed.

PART II: THE MERITS — BOP DISCRETION IS BOUNDED, NOT UNLIMITED

A. The statutory structure

- **18 U.S.C. § 3624(c)(1):** BOP “shall, to the extent practicable, ensure” prerelease custody, up to 12 months. Mandatory verb; “to the extent practicable” goes to bed space/logistics, not an unfettered veto.
- **18 U.S.C. § 3624(c)(6)(A)–(C):** Implementing regulations must ensure RRC placement is (A) “conducted in a manner consistent with section 3621(b),” (B) “determined on an individual basis,” and (C) of sufficient duration to maximize reintegration success.
- **18 U.S.C. § 3621(b):** The five factors — facility resources, nature/circumstances of the offense, history/characteristics of the prisoner, sentencing-court statement, pertinent Sentencing Commission policy — plus bed availability, security designation, programmatic/medical/mental-health needs, faith-based requests, and other security concerns. **“Declined to sign a document the inmate disputes as factually false” appears nowhere on this list.**

B. Binding and persuasive case law confirms the boundary

Woodall v. Federal Bureau of Prisons, 432 F.3d 235 (3d Cir. 2005) (binding, originating in D.N.J.) held that a categorical BOP rule foreclosing individualized § 3621(b) consideration is unlawful, and that RRC placement challenges are cognizable via 28 U.S.C. § 2241. *Wedelstedt v. Wiley*, 477 F.3d 1160 (10th Cir. 2007), explains why: three of the five factors are inherently individualized and “cannot” be applied through a blanket rule. *Fults v. Sanders* (8th Cir. 2006), *Elwood v. Jeter* (8th Cir. 2004), *Levine v. Apker* (2d Cir. 2006), and *Rodriguez v. Smith* (9th Cir. 2008) are in accord. If BOP as an institution cannot lawfully adopt a categorical no-consideration rule, a single case manager cannot impose an equivalent rule unilaterally against one inmate, especially for a reason that is not among the statutory factors at all.

Anticipated counter-authority — *Lopez v. Davis*, 531 U.S. 230 (2001): Lopez holds BOP *may* adopt categorical exclusions from a discretionary benefit — but only through notice-and-comment rulemaking, a formal, generally applicable regulation. It does not authorize an unpublished, ad hoc, single-inmate decision by a case manager, applied retroactively to conduct BOP has never identified anywhere, in any regulation or Program Statement, as a disqualifying event.

C. PS 7310.04 confirms the case manager had no authority to do what he did

- § 12: “The Warden is the final decision-making authority for all CCC referrals the unit team recommends.” The unit team, including the case manager, only *recommends*.
- § 11 (“Refusals”): A genuine refusal requires staff *investigation* of the inmate’s reasons and a memorandum **signed by both the Associate Warden (Programs) and the inmate**, documenting the inmate’s rationale and the unit team’s efforts to encourage participation. None of that occurred: there was no investigation of Soto’s actual, stated reason (the false “homeless” designation), no AW signature, and no inmate signature — because Soto did not refuse placement.
- § 10: The exhaustive list of categorical CCC/RRC exclusion grounds (sex-offender PSF, deportable-alien PSF, pending detainees, refusal of IFRP/drug education/release-preparation programming, significant threat to the community, etc.) does not include anything resembling Soto’s conduct — and even the closest category (“significant threat”) requires a **Warden-signed** memorandum explaining the rationale.

Conclusion: Dennis’s July 3 pronouncement satisfies none of PS 7310.04’s mechanisms for a lawful refusal or exclusion. It is wrong on the facts (Soto did not refuse RRC placement — he disputed a false statement and asked that it be corrected) and wrong on the process (no investigation, no Warden or AW sign-off, no documentation).

D. Policy context

BOP’s own recent public statements (April 2025 rescission of a planned SCA-placement cap; Director Marshall’s August 2025 message committing to “maximize the use of home confinement under the First Step Act and Second Chance Act”) confirm current institutional policy runs directly counter to what happened here. This is persuasive context, not an independent legal ground, but it undercuts any suggestion that Dennis’s action reflects ordinary, policy-consistent practice.

E. Closest analogous case

Misseldine v. Lillard, No. 25-CV-01418-SPM (S.D. Ill. Aug. 7, 2025) — a screening order, not a merits ruling, but the court there “[took] very seriously” allegations that a case manager threatened to delay an inmate’s RRC/home-confinement paperwork over a BP-9 dispute, and excused exhaustion on that basis. No case was found squarely on Soto’s exact facts (case manager’s own documentary error, followed by refusal-to-sign, followed by after-the-fact recharacterization as a categorical

refusal) — this is likely an issue of first impression, and the BP-9 should say so candidly rather than overclaim precedent.

PART III: REQUESTED RELIEF

Consistent with the remedy ordered in *Woodall* and *Rodriguez v. Smith* — not a demand for a specific placement outcome (which would run into § 3621(b)’s judicial-review bar), but a demand for the individualized process the statute and BOP’s own policy already promise:

1. Rescind the case manager’s determination that Soto is “no longer being considered” for RRC/Second Chance Act placement.
 2. Direct the unit team to conduct a prompt, individualized § 3621(b) review of Soto for full SCA RRC placement, as originally recommended, based on the statutory factors and without reference to the March 17, 2026 document dispute.
 3. In the alternative, if BOP maintains that a “refusal” occurred, direct that PS 7310.04 § 11’s investigation-and-dual-signature procedure be followed before any refusal is recorded, with Soto given the opportunity to state his actual rationale (the disputed “homeless” designation) for the record.
 4. Correct Soto’s Central File to reflect his accurate home address in New York and remove any inaccurate “homeless” designation.
-

PART IV: VERIFICATION CHECKLIST (before any BP-10/BP-11 appeal or court filing)

Statutes/regulations — high confidence, verify punctuation only: - [] 18 U.S.C. §§ 3621(b), 3624(c), 3625 — pull official govinfo.gov U.S. Code PDF (captured here via Cornell LII) - [] 28 C.F.R. §§ 542.10–542.19 — high confidence (pulled directly from eCFR API) - [] PS 1330.18 — high confidence for quoted passages (text-extracted from bop.gov PDF)

Program statement currency: - [] Confirm PS 7310.04 (dated 12/16/1998, textually still references the pre-Second-Chance-Act six-month cap) has not been superseded by a renumbered directive or guidance memo — check BOP’s policy index and the RRC/Home Confinement guidance memo at

bop.gov/foia/rrc_hc_guidance_memo.pdf - [] Confirm PS 5800.17(11)(c) or successor (Central File accuracy-challenge procedure) current section number

Case law needing primary-source pin-cite confirmation: - [] *Woodall v. FBOP*, 432 F.3d 235 (3d Cir. 2005) — exact merits-holding quote and pincite - [] *Ross v. Blake*, 578 U.S. 632, 643–44 (2016) - [] *Robinson v. Superintendent Rockview SCI*, 831 F.3d 148, 154 (3d Cir. 2016) - [] *Rinaldi v. United States*, 904 F.3d 257 (3d Cir. 2018) - [] *Brown v. Croak*, 312 F.3d 109 (3d Cir. 2002); *Small v. Camden County*, 728 F.3d 265 (3d Cir. 2013) - [] *Wedelstedt v. Wiley*, 477 F.3d 1160 (10th Cir. 2007); *Fults v. Sanders*, 442 F.3d 1088 (8th Cir. 2006); *Elwood v. Jeter*, 386 F.3d 842 (8th Cir. 2004); *Levine v. Apker*, 455 F.3d 71 (2d Cir. 2006); *Rodriguez v. Smith*, 541 F.3d 1180 (9th Cir. 2008) - [] *Lopez v. Davis*, 531 U.S. 230 (2001) — confirm holding is limited to rulemaking-based categorical exclusions - [] *Misseldine v. Lillard*, No. 25-CV-01418-SPM (S.D. Ill. Aug. 7, 2025) — confirm final citation once assigned; screening order only, not merits - [] *Reno v. Koray*, 515 U.S. 50 (1995) — status of Program Statements as internal guidelines, not binding regulations

Factual items to confirm before filing/appeal: - [] Obtain the actual Fort Dix institution supplement text (3-working-day BP-8 deadline, Warden Thompson) — not publicly posted online; request from institution law library / Administrative Remedy Coordinator - [] Confirm who signed/issued the July 15 “untimely” determination (case manager vs. Administrative Remedy Coordinator) - [] Confirm whether a PS 7310.04 § 11 refusal memorandum (AW(P) + inmate signatures) exists in Soto’s Central File — its absence is affirmative evidence for Soto - [] Confirm Soto’s current custody classification (PS 5100.08) has not also been altered

Do not cite without independent verification: - [] *Garcia v. Williams* / FCI Englewood litigation — sourced only from an advocacy blog, could not be confirmed on PACER/CourtListener; drop unless verified - [] Unattributed “FSA and SCA authorities are cumulative” BOP memo quote — source not located

APPENDIX: FILE INDEX

File	Content
part1-exhaustion-timeliness.md	28 C.F.R. § 542.14/16, PS 1330.18, Ross/Robinson/Brown/Small unavailability doctrine, continuing-violation persuasive authority
part2-sca-substantive.md	Verbatim § 3624(c), § 3621(b), § 3625; corrects premise that 34 U.S.C. § 60541 supplies the factor test; PS 7310.04; Woodall/Lopez v. Davis
part3-caselaw.md	Individualized-consideration case line; <i>Misseldine v. Lillard</i> close analog; circuit split on reviewability; Bivens foreclosed (<i>Egbert</i> , <i>McGowan</i>)
part4-program-statements.md	Verbatim PS 1330.18 and PS 7310.04 text; institution-supplement legal status; Reno v. Koray framework
BP9-DRAFT.md	The filing itself
